

IN THE COUNTY COURT OF MANATEE COUNTY, FLORIDA

COLONIAL MOBILE MANOR
LIMITED, LLLP, etc.

Plaintiff,

vs.

Case No. 2015-CC-1274

MARLIN YODER, et al.,
Defendants.

FILED FOR RECORD
2015 DEC -2 PM 12:49
CLERK OF THE CIRCUIT COURT
MANATEE CO. FLORIDA

ORDER GRANTING DEFENDANT'S MOTION TO COMPEL

THIS CAUSE was heard before this Court on November 17, 2015, upon Defendant's Motion to Compel, and the Court having reviewed the Court file and heard argument of the parties, it is hereby,

ORDERED AND ADJUDGED as follows:

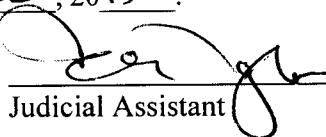
1. For the reasons set forth below, Defendant's Motion to Compel is **GRANTED**.
2. The Plaintiff resists production of violation notices sent to other tenants of the subject mobile home park because it alleges that such production would infringe on the individual privacy rights of those other tenants. The Court does not find that the production of the requested violation notices would result in the disclosure of private information or invade any protected privacy interest of the other tenants. Further, it is unclear whether Plaintiff can assert individual rights that belong to its tenants. See, *Alterra Healthcare Corp. v. Estate of Shelley*, 827 So. 2d 936 (Fla. 2002).
3. Even if the Court were to find that the requested records were confidential and that their disclosure would implicate individual privacy rights of other tenants, the Court finds that the competing interests to be weighed in determining whether to grant or deny the request weigh in favor of allowing the requested discovery. *Id.* See also, *Aetna Life Ins. Co. v. Hausman*, 598 So. 2d 223 (Fla. 5th DCA 1992). The Defendant has alleged the affirmative defense of selective enforcement and disclosure of the violation notices to other tenants will be critical in resolving this contested issue.
4. The Court reserves jurisdiction to determine the issue of Defendant's request for the costs incurred in bringing the motion.

DONE AND ORDERED in Bradenton, Manatee County, Florida this 1st day of DEC., 2015.



CHARLES SNIFFEN
County Judge

I HEREBY CERTIFY that a copy of the foregoing has been furnished by mail to the above-named parties this 2nd day of Dec, 2015.


Judicial Assistant